

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #7	CCRB Case #: 201903365	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/07/2018 8:35 AM	Location of Incident: 521 Malcolm X Blvd, 32nd Precinct Stationhouse	Precinct: 32	18 Mo. SOL 6/7/2020	EO SOL 1/22/2021	
Date/Time CV Reported Fri, 04/19/2019 8:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/19/2019 8:44 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Derek Jaffe	07697	953993	032 PCT
3. POM Kevin Brabazon	10455	953701	032 PCT
4. SGT Valorie Montes	04385	935339	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Derek Jaffe	Discourtesy: Police Officer Derek Jaffe acted discourteously toward § 87(2)(b)	
B.SGT Valorie Montes	Discourtesy: Sergeant Valorie Montes spoke discourteously to § 87(2)(b)	
C.POM Kevin Brabazon	Discourtesy: Police Officer Kevin Brabazon spoke discourteously to § 87(2)(b)	
D.SGT Valorie Montes	Abuse: Sergeant Valorie Montes sexually humiliated § 87(2)(b)	
E.POM Derek Jaffe	Abuse: Police Officer Derek Jaffe sexually humiliated § 87(2)(b)	
F.POM Kevin Brabazon	Abuse: Police Officer Kevin Brabazon sexually humiliated § 87(2)(b)	
G.SGT Valorie Montes	Abuse: Sergeant Valorie Montes threatened to arrest § 87(2)(b)	
H.POM Derek Jaffe	Abuse: Police Officer Derek Jaffe threatened to arrest § 87(2)(b)	
I. An officer	Abuse: An officer threatened to arrest § 87(2)(b)	
J.SGT Valorie Montes	Abuse: Sergeant Valorie Montes threatened to remove § 87(2)(b) to the hospital.	

Case Summary

On April 19, 2019, § 87(2)(b) called the CCRB and filed the following complaint.

On December 7, 2018, at approximately 8:35 a.m., § 87(2)(b) was arrested by Police Officer Kevin Brabazon and Police Officer Derek Jaffe of the 32nd Precinct. After being issued a summons and released from custody, PO Jaffe allegedly threw § 87(2)(b) clothes outside, and either Sergeant Valerie Montes of the 32nd Precinct, or PO Brabazon stated, “Pack § 87(2)(b) shit,” in reference to § 87(2)(b) effects (**Allegations A, B, and C: Discourtesy-Action/Word**, § 87(2)(g)). PO Brabazon, PO Jaffe, and Sgt. Montes then allegedly removed § 87(2)(b) from the 32nd Precinct stationhouse wearing only long johns and a tee shirt (**Allegations D, E, and F: Abuse of Authority-Sexual Misconduct**, § 87(2)(g)). § 87(2)(b) reentered the stationhouse, wherein PO Jaffe, Sgt. Montes, and an officer threatened to re-arrest him if he did not leave (**Allegations G, H, and I: Abuse of Authority-Threat of Arrest**, § 87(2)(g)). Sgt. Montes then allegedly told her officer to call a “HVAC” or “HMAC” bus for § 87(2)(b) and “act like § 87(2)(b) is crazy,” in order to remove him to the hospital (**Allegation J: Abuse of Authority-Threat to remove to the Hospital**, § 87(2)(g)).

There is no video evidence for this case.

Findings and Recommendations

Allegation A—Discourtesy: Police Officer Derek Jaffe acted discourteously toward § 87(2)(b).

Allegation B—Discourtesy: Sergeant Valerie Montes spoke discourteously to § 87(2)(b).

Allegation C—Discourtesy: Police Officer Kevin Brabazon spoke discourteously to § 87(2)(b).

Allegation D—Abuse of Authority: Sergeant Valerie Montes sexually humiliated § 87(2)(b).

Allegation E—Abuse of Authority: Police Officer Derek Jaffe sexually humiliated § 87(2)(b).

Allegation F—Abuse of Authority: Police Officer Kevin Brabazon sexually humiliated § 87(2)(b).

On December 7, 2018, at approximately 8:35 a.m., § 87(2)(b) was arrested for disorderly conduct by PO Brabazon and PO Jaffe inside of Exquisite Deli at 521 Lenox Avenue in Manhattan. The officers transported § 87(2)(b) to the 32nd Precinct stationhouse. After being lodged in the holding cells for approximately 40 minutes, the officers came back to the holding cells, wherein PO Brabazon informed § 87(2)(b) that he was going to be released with a summons for § 87(2)(b).

PO Brabazon (BR02) and PO Jaffe (BR03) each testified that after informing him he was free to leave, § 87(2)(b) said he did not want to leave the stationhouse, and began to remove articles of clothing, which both officers thought were his pants and tee shirt. § 87(2)(b) testified (BR01) that he was wearing long johns and a t-shirt in the cell. He had removed his outer layers to avoid having his strings cut. When the officers approached, he struggled to put his outer layer of clothing on because one of his arms was in a splint cast, and the officers told § 87(2)(b) he needed to hurry up and leave the stationhouse. In his CCRB interview, § 87(2)(b) told the officers that he needed time to get dressed and continued trying, and that PO Jaffe scooped up his clothes and placed them outside the stationhouse. However, in a follow up phone call, § 87(2)(b) said (BR10) that a few moments after telling the officers he needed more time, either Sgt. Montes or PO Brabazon said, “Pack his shit. § 87(2)(b) needs to leave right now whether he’s dressed or not,” and then PO Jaffe put his clothes outside. § 87(2)(b) denied that the officers gave him a chance to get dressed.

As an officer escorted him out of the stationhouse, § 87(2)(b) stated (BR01) that he turned to the desk officer and asked if they were going to kick him out of the stationhouse “butt naked.” An officer responded that they gave him time to get dressed, however, in contrast to his phone

statement, § 87(2)(b) stated (BR01) that Sgt. Montes told PO Brabazon and PO Jaffe that they should not have escorted § 87(2)(b) out of stationhouse dressed like that because that was not the way he came in. PO Brabazon (BR02) and PO Jaffe (BR03) each denied that § 87(2)(b) fully undressed, and did not recall him making any remarks about being “kicked out of the stationhouse naked.”

PO Brabazon (BR02) did not recall any officer pick up § 87(2)(b) clothes and place them outside the stationhouse and denied that he or any other officer stated the phrase “pack his shit,” in reference to § 87(2)(b) clothes. PO Jaffe (BR03), did not recall any officer stating the phrase “pack his shit,” but testified that he and PO Brabazon told § 87(2)(b) that he could either put his clothes back on or take them with him but that he needed to leave. PO Jaffe further stated that when § 87(2)(b) eventually exited, he dropped several articles of clothing in the civilian waiting area of the stationhouse. PO Jaffe thought an officer picked up § 87(2)(b) clothes and brought them outside to him, but could not recall which officer did this, nor whether they were handed to § 87(2)(b) or left outside of the stationhouse. PO Jaffe denied that he or any other officer threw § 87(2)(b) clothes out of the stationhouse.

§ 87(2)(b) stated (BR01) that after being removed from the stationhouse, he began to record with his cellphone, reentered the stationhouse, asked how they were allowed to kick him out without any clothes on, and exited when the officers approached him. § 87(2)(b) stated that he was wearing long johns and a tee shirt when he was escorted out and was unable to provide the cell phone video that he reportedly captured.

Sgt. Montes (BR04) did not have any recollection of § 87(2)(b) refusing to leave the stationhouse, removing any articles of clothing, nor any officer escort § 87(2)(b) from the stationhouse wearing only long johns and a tee shirt. Sgt. Montes denied that she told any officer to “pack § 87(2)(b) shit,” or stated that, § 87(2)(b) needs to leave right now, whether he is dressed or not,” and did not recall any other officer make the aforementioned comment. Sgt. Montes did not witness § 87(2)(b) remark that the officers were “kicking him out of the stationhouse, naked,” denied that she told any officer that they should not have made § 87(2)(b) leave the stationhouse without being fully-dressed, and denied that she ordered or physically removed § 87(2)(b) from the stationhouse “naked.” Sgt. Montes did not recall any officer throw or place § 87(2)(b) clothing outside of the stationhouse and denied that she threw or placed § 87(2)(b) clothing outside.

§ 87(2)(g)

Allegation G—Abuse of Authority: Sergeant Valorie Montes threatened to arrest § 87(2)(b)

Allegation H—Abuse of Authority: Police Officer Derek Jaffe threatened to arrest § 87(2)(b)

Allegation I—Abuse of Authority: An officer threatened to arrest § 87(2)(b)

Allegation J—Abuse of Authority: Sergeant Valorie Montes threatened to remove § 87(2)(b) to the hospital.

In his CCRB interview, § 87(2)(b) testified (BR01) that after he and his clothing were initially removed from the stationhouse, PO Jaffe told him to leave and he refused. PO Jaffe replied, “then you’re going to get re-arrested,” and an officer nearby commented that he could stay and get dressed at Central Booking. While PO Brabazon stated (BR02) that if a civilian refused to leave the stationhouse after being ordered, they could be arrested for trespassing, and described § 87(2)(b) as being “adamant” about not leaving the stationhouse, he denied that he or any other officer threatened to re-arrest § 87(2)(b) for refusing to redress, and denied that any officer told § 87(2)(b)

§ 87(2)(b) that he could “either get dressed here or at Central Booking.” While PO Jaffe stated (BR03) that § 87(2)(b) refused to comply with the officers’ orders to redress and was “yelling and screaming,” after being issued the summons and refused to leave, he did not recall whether he or any other officer threatened to re-arrest him, nor recalled whether he or any other officer told him that he could “either get dressed here or at Central Booking.”

In a follow-up phone call, § 87(2)(b) stated (BR10) that after arguing with the officers about the amount of time he needed to get dressed, Sgt. Montes said she would give him a few more seconds, and stated either that if he did not leave then he would go to Central Booking, or gave him the option to get dressed there or at Central Booking. Upon reentering the stationhouse, § 87(2)(b) stated that an unidentified officer gave him the same ultimatum, wherein they said he could “either [get dressed] here or Central Booking. We just want you out.” Sgt. Montes (BR04) had no recollection of § 87(2)(b) refusing to leave the 32nd Precinct stationhouse after he was issued summonses but stated that she informed § 87(2)(b) that, if he did not respond to the summonses, an arrest warrant would be generated for him. Sgt. Montes did not recall her or any other officer threatening to re-arrest § 87(2)(b) if he did not leave the stationhouse, but added that if a civilian received summonses and refused to leave the stationhouse after being ordered to do so, they could be arrested for criminal trespassing.

§ 87(2)(b) testified (BR01) that a few moments later, Sgt. Montes told the officers that they would have to get an “HVAC/HMAC/VAC bus” for § 87(2)(b). Sgt. Montes (BR04), PO Brabazon (BR02), and PO Jaffe (BR03) each denied having any awareness or understanding of what the acronyms “HVAC” or “HMAC” stood for either personally or with regard to the NYPD or EMS. While § 87(2)(b) initially testified (BR01) that Sgt. Montes told the officers they would need to act like he is “crazy” and take him to the hospital, he later testified that Sgt. Montes told the officers to grab him and then get him in the “bus.” § 87(2)(b) denied that Sgt. Montes made any explicit comments about removing him to the hospital or about his mental health but reiterated that she kept repeating “get the bus for him” and “get him in the bus.” Neither PO Brabazon (BR02), nor PO Jaffe (BR03) recalled any officer threatening or commenting about calling an ambulance or bus for § 87(2)(b) nor recalled any officer commenting stating they would have to “act like” he was crazy in order to remove him to the hospital. Sgt. Montes denied (BR04) that she stated she would need to “act like” § 87(2)(b) was crazy or threatened to remove him to the hospital.

After an unknown amount of time, § 87(2)(b) redressed, left the area, and was not removed to the hospital from the 32nd Precinct stationhouse.

A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises. Penal Law, §140.05 (BR11).

In People v. Reape, 22 Misc. 3d 615 (Crim Ct. 2008) (BR12), the court found that an officer communicated a lawful order for a defendant to leave the stationhouse when allowing the defendant to stay upon the precinct property would interfere with the ordinary use of the property of the Police Department and by other members of the public.

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party in one prior CCRB case, and in one pending CCRB case.

○ § 87(2)(b)

§ 87(2)(g)

- Sgt. Montes, a 15-year-member-of-service, has had three prior CCRB complaints filed against her, with a total of three allegations, none of which were substantiated (see Officer History).

§ 87(2)(g)

- PO Brabazon, a seven-year-member-of-service, has had five prior CCRB complaints filed against him, with a total of 25 allegations, none of which were substantiated (see Officer History).
- PO Jaffe, a seven-year-member-of-service, has had three prior CCRB complaints filed against him, with a total of seven allegations, none of which were substantiated (see Officer History).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected the offer to mediate this complaint.
- As of February 13, 2020, § 87(2)(b) has not filed a Notice of Claim in regards to this incident, based upon a FOIL request sent to the NYC Comptroller's office that was returned with negative results (BR13).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date